

**Superior Court of the State of California
County of Orange**

**Hon. ANDRE MANSSOURIAN
Department C12 – (657) 622-5212**

TENTATIVE RULINGS

Court will make every effort to post tentative rulings by approximately 3:00 p.m. the court day before the date the motion is to be heard.

If the parties agree to submit on the Court's tentative ruling, please call Department C12 directly to inform the court that **all parties** submit to the Court's tentative ruling.

Reminder: Court does NOT provide court reporters.

No filings or briefs of any kind will be accepted after the tentative ruling is posted.

Parties are welcome to be present in court for the law and motion calendar or appear by Zoom. To make an appearance via Zoom please click the following link. If you are unable to log in, please call the department for an alternative arrangement. <https://www.occourts.org/civil-remote-hearings>.

June 26, 2026

#	Case Name	Tentative
1.	Geng vs. Kingswood Law, P.C. 25-01505090	VACATED
2.	Persek vs. American Honda Motor Co., Inc. 24-01426452	Motion to Compel Deposition (Oral or Written) Plaintiff Erik Persek's Motion to Compel the Deposition of Defendant American Honda Motor Co., Inc.'s Person Most Qualified is GRANTED.

Plaintiff began requesting dates for Defendant's PMQ's deposition in October 2024. After Defendant failed to provide any proposed dates, on November 14, 2024, Plaintiff noticed the deposition of Defendant's PMQ with the deposition scheduled for December 4, 2024. (Agyeman Decl., ¶ 4; Exh. 2.) Plaintiff did not provide any alternative dates for the deposition.

On October 17, 2025, Plaintiff again noticed the deposition of Defendant's PMQ. (Agyeman Decl., ¶ 6; Exh. 3.) Defendant failed to appear for the deposition or provide any objection.

After more than a year of unsuccessful efforts to obtain Defendant's cooperation, Plaintiff re-noticed Defendant's PMQ deposition for January 30, 2026. (Agyeman Decl., ¶ 11; Exh. 6.) Defendant served written objections to the deposition notice but did not seek a protective order or other court relief excusing its appearance. (Agyeman Decl., ¶ 12; Exh. 8.)

Defendant's PMQ failed to appear at the deposition on January 30, 2026. Despite efforts to reschedule the deposition with defense counsel, no other dates have been provided. (Agyeman Decl., ¶¶ 14-16.)

Defendant has not opposed this motion or offered any explanation for non-compliance.

Accordingly, the unopposed motion to compel Plaintiff's deposition is GRANTED. (Code Civ. Proc., § 2025.450(a).)

Defendant's PMQ deposition shall take place by July 31, 2026, regarding the matters identified in Plaintiff's PMQ deposition notice.

The Court finds no substantial justification for Defendant's PMQ's failure to appear at the deposition or provide alternate dates for the deposition. Therefore, sanctions are justified.

"The amount of monetary sanctions is limited to the 'reasonable expenses, including attorney's fees' that a party incurred as a result of the discovery abuse." (*Cornerstone Realty Advisors, LLC v. Summit Healthcare REIT, Inc.* (2020) 56 Cal.App.5th 771, 79 (quoting Cal. Civ. Proc. Code § 2023.030(a)).

The court reduces Mr. Agyeman's hourly rate of \$545.80/hour to \$500/hour. Accordingly, the court orders sanctions in the total amount of \$2,750 (5.5 hrs x \$500/hr) against Defendant and its

		counsel of record. (Code Civ. Proc., § 2025.450(g).) Sanctions to be paid by July 31, 2026. Moving Party to give notice of this ruling.
3.	Mohareb vs. Kindred Hospital Brea 25-01536090	1. Motion to Compel Arbitration 2. Case Management Conference Defendants Kindred Hospital Brea; THC -Orange Count, LLC dba Kindred Hospital Brea; Kindred Healthcare Operating, LLC; and Kindred Healthcare, LLC’s Motion to Compel Arbitration is DENIED. “[W]hen a petition to compel arbitration is filed and accompanied by prima facie evidence of a written agreement to arbitrate the controversy, the court itself must determine <i>whether the agreement exists</i> and, if any defense to its enforcement is raised, whether it is enforceable.” (<i>Mitri v. Arnel Management Co.</i> (2007) 157 Cal.App.4th 1164, 1169; (Code Civ. Proc, § 1281.2.) “California contract law applies to determine whether the parties formed a valid agreement to arbitrate.” (Id. at 1170.)¹ “In determining the existence of an agreement to arbitrate, the trial court must employ a three-step burden shifting process. The party seeking to compel arbitration bears an initial burden to show an agreement to arbitrate; that burden can be met by providing a copy of the alleged agreement. If that initial burden is met, the burden shifts to the party opposing arbitration to identify a factual dispute as to the agreement's existence, thereby shifting the burden back to the arbitration proponent. At that point, and “[b]ecause the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence.” (<i>Garcia v. Stoneledge Furniture LLC</i> (2024) 102 Cal.App.5th 41, 51 [cleaned-up].) Here, Kindred Defendants submit the “Voluntary Alternative Dispute Resolution (ADR) Agreement” that was executed by Hanem Mohareb’s daughter, Plaintiff Iriny Ebid. In executing the ADR Agreement, Ms. Ebid certified her authority to consent on behalf of Ms. Mohareb to the terms of agreement. Under the ADR agreement, Ms. Ebid agreed on behalf of her mother that the ADR agreement “ ... covers any claim or action brought by a party other you (e.g. an action by your spouse, legal representative, agent, heir) arising out of relating to your hospitalization ... ”